

**STATE OF NEW MEXICO
HOUSE OF REPRESENTATIVES
57TH LEGISLATURE —2026**

NEW MEXICO SURVIVORS' TRUTH COMMISSION
(Special Committee Established Pursuant to House Resolution 1)

LEGISLATIVE SUBPOENA DUCES TECUM

TO: Honorable Timothy VerHey
United States Attorney
Office of the United States Attorney
Western District of Michigan
Huntington Bank Building, 2nd Floor
1930 US 41 West
Marquette, MI 49855

I. AUTHORITY

THIS SUBPOENA is issued by the New Mexico Survivors' Truth Commission ("Commission"), a Special Committee of the New Mexico House of Representatives duly constituted by House Resolution 1, adopted unanimously by the House of Representatives of the State of New Mexico on February 16, 2026, 57th Legislature, Second Session (hereinafter "HR1").

HR1 expressly vests the Commission with "all necessary powers and process, including the powers to conduct hearings, compel the attendance of witnesses, administer oaths and issue subpoenas." HR1 further provides that after the legislature adjourns sine die, subpoenas "shall be enforced in any court with jurisdiction over the process and shall be in compliance with the applicable rules of the court."

The Commission derives its investigative authority from Article 4, Section 2 of the Constitution of New Mexico, which vests the Legislature with "all powers necessary to the legislature of a free state," expressly including "the indispensable power of inquiry, through which either chamber of the legislature may conduct investigative procedures to secure information necessary to legislate, to provide general oversight of the administration of government, the expenditure of public money and the use of public resources." HR1, Whereas Clauses.

The Commission is further authorized by Article 4, Section 35 of the Constitution of New Mexico, which vests the House of Representatives with the sole power of impeachment, conferring a unique duty to oversee the conduct of state officers and compelling the investigation of allegations of misconduct.

The Commission's investigative authority is further supported by controlling federal authority. The United States Supreme Court has held that the power of inquiry, with process to enforce it, is an

essential auxiliary to the legislative function. *McGrain v Daugherty*, 273 U.S. 135, 174 (1927). A legislative body cannot legislate effectively without the means to obtain information from others. *Id.* at 175. The Supreme Court has recently reaffirmed this principle. *Trump v Mazars USA, LLP*, 591 U.S. 848, 862 (2020). A legislative subpoena is valid if the investigation has a legitimate legislative purpose and the specific inquiry is pertinent to that purpose. *Watkins v United States*, 354 U.S. 178, 187 (1957). The investigation need not produce legislation; it must deal with a subject on which legislation “could be had.” *Eastland v United States Servicemen’s Fund*, 421 U.S. 491, 506 (1975).

This subpoena satisfies the three-part test adopted by the New Mexico Supreme Court in *In re Investigation No. 2 of the Governor’s Organized Crime Prevention Commission*, 1978-NMSC-022, 91 N.M. 516, 577 P.2d 414 (*Jaramillo*), applying *United States v Morton Salt Co.*, 338 U.S. 632, 652 (1950): (1) the inquiry is within the authority of the issuing body — HR1 is a House resolution adopted by unanimous vote through regular legislative procedures, vesting the Commission with subpoena power in plain terms; (2) the demand is not too indefinite — this subpoena identifies the respondent, the subject matter, and the documents required with specificity; and (3) the information sought is reasonably relevant — the records commanded bear directly on the legislative purposes stated in HR1, Sections A through E, including whether existing law failed to prevent the alleged conduct at Zorro Ranch and what legislative remedies are needed. The New Mexico Supreme Court held in *Jaramillo* that investigative subpoenas issued by a non-accusatory body are administrative in nature and do not require probable cause. *Id.* at 518, 577 P.2d at 416.

The Commission is charged with investigating Zorro Ranch and related allegations of criminal activity, public corruption, and the use of public money and resources, to determine whether legislative or other action is needed in accordance with the purposes set forth in HR1, Sections A through E.

II. COMMAND FOR PRODUCTION OF DOCUMENTS

YOU ARE HEREBY COMMANDED, pursuant to the lawful authority of the New Mexico Survivors’ Truth Commission and House Resolution 1, to produce before the Commission, through its designated counsel, true, complete, and legible copies of all documents, records, and electronically stored information described herein, no later than:

DATE OF COMPLIANCE: Friday, July 17, 2026

TIME: 4:00 p.m. MDT

PLACE: Fadduol, Cluff, Hardy & Conaway, P.C.

3301 San Mateo Blvd. NE

Albuquerque, New Mexico 87110

Telephone: 505-243-6045

Should electronic compliance be sought, please contact our office at the number above and email info@nmtruthcommission.com

FAILURE TO COMPLY WITH THIS SUBPOENA will require the Commission to seek judicial enforcement. Pursuant to HR1, 4:4-8, after the legislature adjourns sine die, process shall be enforced in any court with jurisdiction over the process in compliance with the applicable rules of that court.

Enforcement proceeds by verified petition captioned: *In re Investigation of Zorro Ranch Pursuant to House Resolution 1, 57th Legislature, State of New Mexico; State of New Mexico ex rel. Special Committee of the House of Representatives Investigating Zorro Ranch, Petitioner, v [Respondent]*. The court will hold a show-cause hearing at which you may raise all defenses. Because you are a public officer, the Commission further reserves the right to seek a writ of mandamus under NMSA 1978, § 44-2-1 et seq. compelling performance of any nondiscretionary duty to produce public records or testify about official conduct.

III. DOCUMENTS AND RECORDS TO BE PRODUCED

You are commanded to produce ALL documents, records, data, and electronically stored information (“ESI”) in the custody, possession, or control of the United States Attorney’s Office, Western District of Michigan, relating to Jeffrey Epstein (also known as Jeffrey Edward Epstein), **for the period January 1, 1994 through the present**, including but not limited to the following categories of information:

1. INVESTIGATION FILES — Any and all documents, records, files, reports, notes, witness interviews (“302s”), work product, and materials of any kind constituting, comprising, or relating to any investigation conducted by USAO-WDMI into Jeffrey E. Epstein, his associates, co-conspirators, or any individuals alleged to have participated in or facilitated unlawful conduct in connection with Epstein, including but not limited to activities at or related to the Zorro Ranch property located in Stanley, New Mexico.

2. POLICIES AND PROCEDURES — Any and all policies, procedures, protocols, directives, guidance documents, standing orders, and internal rules governing the preservation, retention, destruction, archiving, or handling of files, records, evidence, and documents related to any Epstein-related investigation or any criminal investigation generally, as maintained by USAO-WDMI between January 1, 1994 through the present.

3. COMMUNICATIONS — Any and all communications of any kind, including but not limited to letters, emails, memoranda, text messages, instant messages, phone logs, meeting minutes, and any other form of written or electronic correspondence, between the U.S. Department of Justice, to include the Office of the U.S. Attorney General, the Office of the Deputy U.S. Attorney General, and the Criminal Division of the U.S. Department of Justice (herein collectively referred to as “Main Justice”) and USAO-WDMI; and between USAO-WDMI and any other U.S. Attorney’s Office, including but not limited to the U.S. Attorney’s Office for the Southern District of New York (USAO-SDNY), relating in any way to Jeffrey E. Epstein, his associates, or any Epstein-related investigation including any decision to not bring state charges or continue any state investigation.

4. FILES SENT TO OTHER AGENCIES --- Any and all documents sent to other agencies, including specifically to Main Justice, USAO-SDFL, and USAO-SDNY, by or on behalf of USAO-WDMI between January 1, 1994 through the present, including but not limited to files, witness statements, emails, memos, correspondence, records, evidence, notes or work product.

5. MEMORANDA AND INTERNAL DOCUMENTS — Any and all internal memoranda, briefing papers, legal opinions, policy memos, analytical documents, and any other internal communications authored by or directed to any employee or official of USAO-WDMI relating to any

Epstein-related investigation including the decision to turn over documents to USAO-SDNY or other component of the U.S. Department of Justice and any decision related to not prosecuting Jeffrey E. Epstein or any of his co-conspirators.

6. LOGS — Any and all logs, indices, tracking records, case management records, evidence logs, document retention logs, chain of custody records, and access logs related to any Epstein investigation file or any property, evidence, or materials associated therewith.

7. LEGAL RESEARCH AND BRIEFS — Any and all legal research, legal memoranda, legal briefs, draft pleadings, internal legal opinions, and related documents prepared by or on behalf of USAO-WDMI relating to Jeffrey E. Epstein, any associated individuals, or any potential charges or civil action arising from the Epstein investigation performed between January 1, 1994, through the present.

8. EVIDENCE — Any and all evidence, evidentiary materials, physical evidence inventories, forensic reports, expert analyses, and related documentation gathered, received, reviewed, or considered by USAO-WDMI in connection with any Epstein-related investigation.

9. DECLINATION DECISIONS AND NON-PROSECUTION MATERIALS — Any and all documents, communications, memoranda, analyses, recommendations, approvals, and records relating to any decision, consideration, or deliberation by USAO-WDMI or Main Justice to decline prosecution of, or to not pursue criminal charges against, Jeffrey Epstein or any person associated with him, including documentation of the basis, rationale, or authorization for any such decision.

10. ZORRO RANCH INSPECTION DOCUMENTS — Any and all documents, communications, memoranda, reports, site visit records, inspection plans, warrants, warrant applications, investigative proposals, and any other materials that reference, contemplate, plan, authorize, or reflect any inspection, search, investigation, or law enforcement activity at or related to the Zorro Ranch property located in Stanley, Torrance County, New Mexico, whether or not such inspection or search was ultimately conducted.

IV. DEFINITIONS AND INSTRUCTIONS

1. “Documents” and “Records”

As used herein, “documents” and “records” mean any recorded information in any format or medium, including but not limited to paper documents, emails, text messages, instant messages, voicemails, photographs, maps, GIS or spatial data files, audio or video recordings, databases, spreadsheets, and any other electronically stored information (“ESI”), regardless of whether stored on agency servers, personal devices, removable media, cloud platforms, or backup systems.

2. Format of Production

Produce all responsive records in their native electronic format, including all metadata, where available. Where records must be produced in paper form, provide true and legible copies. Do not produce documents in a format that degrades the quality or legibility of the original.

3. Withheld Records

If any responsive record is withheld in whole or in part on any claimed basis, you must provide a written privilege log identifying: (a) the specific record or category of records withheld; (b) the specific legal basis for withholding; (c) a description sufficient to assess the claim; and (d) the identity of all persons with knowledge of the withheld record. General or conclusory assertions of privilege are insufficient.

4. Continuing Obligation

This subpoena imposes a continuing obligation to supplement your production promptly upon discovering additional responsive records.

5. Relevant Period

“Relevant Period” means January 1, 1994, through the present.

V. NOTICE OF PRESERVATION OBLIGATION

Upon receipt of this Subpoena, you and all officers, employees, agents, and contractors of the USAO-WDMI are hereby formally notified that you must immediately preserve and protect from destruction, alteration, deletion, or loss any and all records potentially responsive to this Subpoena. This preservation obligation extends to all paper documents, ESI, backup tapes, email archives, text messages, instant messages, and any other recorded information, whether stored on USAO-WDMI systems, personal devices, or third-party platforms.

The destruction, concealment, or material alteration of records subject to a legislative subpoena may constitute obstruction of a legislative proceeding and may expose responsible individuals and entities to criminal and civil liability under applicable New Mexico law, including but not limited to NMSA 1978, § 14-3-18 (unlawful destruction of public records) and the New Mexico Governmental Conduct Act, NMSA 1978, §§ 10-16-1 et seq. The Commission further reserves the right to seek preliminary injunctive relief under Rule 1-066 NMRA prohibiting the destruction, alteration, or concealment of any records subject to this Subpoena if there is reason to believe responsive records are at risk.

THIS SUBPOENA IS ISSUED this 18th day of June, 2026, by the New Mexico Survivors’ Truth Commission, acting pursuant to House Resolution 1, 57th Legislature, Second Session, State of New Mexico.

Representative Andrea Romero

Representative Andrea Romero

Chair, New Mexico Survivors' Truth Commission
Special Committee of the House of Representatives
State of New Mexico



FADDUOL, CLUFF, HARDY & CONAWAY, P.C.
Counsel to the New Mexico Survivors' Truth Commission
3301 San Mateo Blvd. NE
Albuquerque, New Mexico, 87110
Phone: 505-243-6045
Fax: 505-243-6642

CERTIFICATE OF SERVICE

I hereby certify that on _____, 2026, a true and correct copy of this Subpoena Duces Tecum was served upon

Honorable Timothy VerHey
United States Attorney
Office of the United States Attorney
Western District of Michigan
Huntington Bank Building, 2nd Floor
1930 US 41 West
Marquette, MI 49855

by:

☒ [X] Certified U.S. Mail, Return Receipt Requested

I, being duly sworn, on oath say that I am over the age of eighteen (18) years and that on the ____ day of _____, 2026, in _____ County, I served this subpoena on _____ by delivering to the person named a copy of the subpoena,

[Name]

TO BE PRINTED ON EACH SUBPOENA

1. This subpoena must be served on each party in the manner provided by Rule 1-005 NMRA. If service is by a party, an affidavit of service must be used instead of a certificate of service.
2. A command to produce evidence or to permit inspection may be joined with a command to appear for a deposition or trial.
3. If a person's attendance is commanded, one full day's per diem must be tendered with the subpoena, unless the subpoena is issued on behalf of the state or an officer or agency thereof. See Section 38-6-4 NMSA 1978 for per diem and mileage for witnesses. See Paragraph A of Section 10-8-4 NMSA 1978 for per diem and mileage rates for nonsalaried public officers. Mileage must also be tendered at the time of service of the subpoena as provided by the Per Diem and Mileage Act. Payment of per diem and mileage for subpoenas issued by the state is made pursuant to regulations of the Administrative Office of the Courts. See Section 34-9-11 NMSA 1978 for payments from the jury and witness fee fund.

PROTECTION OF PERSONS SUBJECT TO SUBPOENAS

A party or an attorney responsible for the issuance and service of a subpoena shall take reasonable steps to avoid imposing undue burden or expense on a person subject to that subpoena. The court on behalf of which the subpoena was issued shall enforce this duty and impose upon the party or attorney in breach of this duty an appropriate sanction, which may include, but is not limited to, lost earnings and a reasonable attorney's fee.

Subject to Subparagraph (2) of Paragraph D below, a person commanded to produce and permit inspection and copying may, within fourteen (14) days after service of the subpoena or before the time specified for compliance if such time is less than fourteen (14) days after service, serve upon the party or attorney designated in the subpoena written objection to inspection or copying of any or all of the designated materials or of the premises or within fourteen (14) days after service of the subpoena may file a motion to quash the subpoena and serve the motion on all parties to the action. If an objection is served or a motion to quash is filed and served on the parties, the party serving the subpoena shall not be entitled to inspect and copy the materials or inspect the premises except pursuant to an order of the court by which the subpoena was issued. If objection has been made, the party serving the subpoena may, upon notice to the person commanded to produce, move at any time for an order to compel the production. Such an order to compel production shall protect any person who is not a party or an officer of a party from significant expense resulting from the inspection and copying commanded.

On timely motion, the court by which a subpoena was issued shall quash or modify the subpoena if it:

- (1) fails to allow reasonable time for compliance,
- (2) requires a person who is not a party or an officer of a party to travel to place more than one hundred miles from the place where that person resides, is employed or regularly transacts business in person, except as provided below, such a person may in order to attend trial be commanded to travel from any such place within the state in which the trial is held, or

- (3) requires disclosure of privileged or other protected matter and no exception or waiver applies, or
- (4) subjects a person to undue burden.

If a subpoena:

- (1) requires disclosure of a trade secret or other confidential research, development, or commercial information, or
- (2) requires disclosure of an unretained expert's opinion or information not describing specific events or occurrences in dispute and resulting from the expert's study made not at the request of any party, or
- (3) requires a person who is not a party or an officer of a party to incur substantial expense to travel, the court may, to protect a person subject to or affected by the subpoena, quash or modify the subpoena or, if the party in whose behalf the subpoena is issued shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship and assures that the person to whom the subpoena is addressed will be reasonably compensated, the court may order appearance or production only upon specified conditions.

DUTIES IN RESPONDING TO SUBPOENA

- (1) A person responding to a subpoena to produce documents shall produce them as they are kept in the usual course of business or shall organize and label them to correspond with the categories in the demand.
- (2) When information subject to a subpoena is withheld on a claim that it is privileged or subject to protection as trial preparation materials, the claim shall be made expressly and shall be supported by a description of the nature of the documents, communications, or things not produced that is sufficient to enable the demanding party to contest the claim.